

August 14, 2026, Civil Law & Motion Tentative Rulings

1. CU0001581 Robert Wilmot, et al. vs. Jason Medich, et al.

One of the parties apparently reserved this date for the filing of a motion; none was filed. This matter is removed from calendar.

2. CU0001924 Robert Ponce vs. Hunt & Sons, Inc., et al

Plaintiff's motion for class list is granted.

Request for Judicial Notice

Defendant Hunt Oil's requests for judicial notice are granted.

Timeliness

Hunt and Sons and Hunt Oil argue that the motion was not timely served and should be denied as such. Based on the hearing date of August 14, 2026, the deadline to serve the present motion electronically was July 21, 2026. *See* Code Civ. Proc. § 1005(b); 1010.6(a)(3)(B). The motion's proof of service reflects service on July 23, 2026. Despite the untimely service, Defendants have filed robust oppositions. The Court exercises its discretion to consider the motion on the merits. *See* Cal. Rules of Ct., Rule 3.1300(d); *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29, 32.

Precertification Discovery

Plaintiff moves for an order approving a *Belaire-West* notice procedure and compelling Defendants to provide a neutral notice administrator with the names and contact information of the putative class members, subject to an opportunity to object to disclosure. Per Plaintiff, this limited discovery is necessary to determine whether a suitable substitute class representative exists and to permit Plaintiff to seek leave to file a narrowed amended complaint. Defendants Hunt and Sons and Hunt Oil argue generally that precertification discovery should be denied because the risk of abuse of the class action procedure outweighs any conceivable benefit to the class, and specifically, among other things, that: Plaintiff lacks standing to pursue his claims; discovery would unjustifiably invade putative class members' privacy rights, and the potential class members can still seek a remedy on their own. On balance, the Court is persuaded that limited discovery is warranted.

"A class representative who is not a class member or is otherwise unqualified to serve as class representative may, in a proper case, move for precertification discovery for the purpose of identifying a new class representative. California courts have recognized that such a motion for precertification discovery presents a potential for abuse of the class action procedure, but also implicates the rights and interests of potential class members on whose behalf the complaint was filed." *Safeco Ins. Co. of America v. Superior Court* (2009) 173 Cal.App.4th 814, 828.

"The decision to permit or not permit precertification discovery in a class action is committed to the wide discretion of the trial court." *CVS Pharmacy, Inc. v. Superior Court* (2015) 241

Cal.App.4th 300, 307. “Even a lead plaintiff who for some reason is unqualified to serve as a class representative ‘may, in a proper case, move for precertification discovery for the purpose of identifying a new class representative.’ ” *Pirjada v. Superior Court* (2011) 201 Cal.App.4th 1074, 1084. “ ‘Precertification class discovery is not a matter of right.... Before allowing class counsel to find a viable class representative, trial courts must apply a balancing test and weigh the actual or potential abuse of the class action procedure against the potential benefits that might be gained.’ ” *Id.*, citing *Starbucks Corp. v. Superior Court* (2011) 194 Cal.App.4th 820, 825; see also *CVS Pharmacy, Inc. v. Superior Court* (2015) 241 Cal.App.4th 300, 307 (“Precertification class discovery is not a matter of right. In making its determination, the trial court must employ the ‘Parris balancing test’: weighing the actual or potential abuse of the class action procedure against the benefits that might be gained.”)

Relevant factors, among others include: (1) whether the filing or maintenance of a class action is under circumstances where the plaintiff cannot allege standing in good faith,” *Safeco Ins. Co.*, 173 Cal.App.4th 814, 828, 833¹; (2) the rights of the class members and whether they are substantial; *id.* at 834; (3) whether the circumstances make it likely that class members would be denied relief if precertification discovery were not allowed, *ibid*; (4) whether and how the discovery request might impinge on identifiable privacy rights of potential class members. See, e.g., *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 554, 561; *CVS Pharmacy, Inc.*, 241 Cal.App.4th at 313.

First, available information and evidence appearing in the present record suggests or indicates that Plaintiff Ponce is experiencing a medical condition that does not allow him to continue serving as class representative. Koleson Decl., ¶¶ 6, 9, 11-12; RJN Ex. C.

Second, Plaintiff can and has alleged standing in good faith in connection with at least some wage claims. While Defendants argue that many of Plaintiff’s claims are potentially subject to pre-emption under federal law or exemption under California law (*i.e.*, overtime, meal and rest period claims), even Defendants expressly and impliedly concede that some of the claims (*i.e.*, wage and hour claims) are not. Defendants have not persuasively demonstrated that Plaintiff lacks standing such that discovery would constitute an abuse of the class action procedure.

Third, the rights of the class members are substantial. “[A]t stake here is the fundamental public policy underlying California’s employment laws. [T]he prompt payment of wages due an employee is a fundamental policy of this state.” *Belaire-West Landscape, Inc.*, 149 Cal.App.4th at 562 (quotations and citation omitted). In addition, “[t]he current and former employees are potential percipient witnesses to [Defendants’] employment and wage practices, and as such their identities and locations are properly discoverable.” *Ibid*. California’s recognized interest in using class actions to resolve common wage claims efficiently.

Fourth, on the record presented, it appears that class members potentially could be denied relief if precertification discovery were disallowed. Defendants summarily suggest that other remedies remain available for putative class members to pursue. Plaintiff summarily note that denying discovery may extinguish individually modest wage claims because of circumstances personal to

¹ If so, a court can also examine whether plaintiff or their attorneys had no reasonable, good faith belief they had standing when named as a plaintiff. *Safeco Ins. Co.*, 173 Cal App 4th at 834.

Mr. Ponce rather than any determination as to the merits. Neither side provides a great deal of robust argument/facts for their respective positions. Denial of relief appears possible on this record.

Fourth, the discovery request, as presented would not unreasonably intrude upon the privacy rights of class members. To be sure, “the contact information for [Defendants’] current and former employees deserves privacy protection.” *Belaire-West Landscape, Inc.*, 149 Cal.App.4th at 561. “While it is unlikely that the employees anticipated broad dissemination of their contact information when they gave it to [Defendants], that does not mean that they would wish it to be withheld from a class action plaintiff who seeks relief for violations of employment laws.” *Ibid.* “[C]urrent and former [] employees reasonably [can] be expected to want their information disclosed to a class action plaintiff who may ultimately recover for them unpaid wages that they are owed.” *Ibid.* Moreover, “no serious invasion of privacy would result from the release of the names, last known addresses, and last known telephone numbers of current and former employees as long as the disclosure was limited to the named plaintiff[] in a putative class action filed against their employer following a written notice to each employee giving them the opportunity to object to the disclosure of that information.” *Ibid.* “Disclosure of the contact information with an opt-out notice would not appear to unduly compromise either informational privacy [*i.e.*, protection against “dissemination and misuse of sensitive and confidential information”] or autonomy privacy [*i.e.*, protection against interference with “personal activities and decisions”] in light of the opportunity to object to the disclosure. *Id.* at 559, 561.

In sum, after applying a balancing test and weighing the actual or potential abuse of the class action procedure against the potential benefits that might be gained, the Court concludes that precertification discovery, as outlined in Plaintiff’s motion at 9:12-10:1, is warranted. The benefits of this discovery clearly and substantially outweigh any potential risk of potential abuse or prejudice to the putative class members.

3. CU0002002 Cynthia Repella vs. Tania Blair

This matter is removed from calendar pursuant to the notice of withdrawal of the motion to be relieved as counsel filed June 4, 2026.

4. CU0002304 Jason Christ v. Justis Barquilla

Plaintiff Jason Christ’s motion to strike portions of defendant’s answer and cross-complaint is granted in part.

Meet and Confer

Defendant argues that Plaintiff failed to meet and confer prior to filing the motion to strike. Defendant appears correct. “Before filing a motion to strike pursuant to [Code of Civil Procedure sections 435 to 437b], the moving party shall meet and confer” Code Civ. Proc., § 435.5(a). There is no evidence that Plaintiff did do here. That said, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” Code Civ. Proc., § 435.5(a)(4). “If, upon review of a declaration under section [435.5(a)(3)] a court learns no meet and confer has taken place, or concludes further conferences